

CHAPTER 47

National Insurance Act, 1959

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SCHEDULES:

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An Act to alter the contributions payable to the National Insurance Fund under the National Insurance Acts, 1946 to 1957, and the retirement benefits payable under those Acts, and in particular to provide for payment of a graduated retirement benefit in return for contributions related to the amount of a person's remuneration, and for purposes connected therewith. [9th July, 1959]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

CONTRIBUTIONS AND RETIREMENT BENEFITS

Contributions

1.—(1) Subject to the provisions of this Act, and in particular to those in Part II about non-participating employments, the contributions for which employed persons and employers are liable under the National Insurance Act, 1946 (in this Act referred to as "the principal Act") shall be altered as follows:—

Changes in contributions to the National Insurance Fund.

- (a) the rates of the contributions payable under subsection (2) of section two of the principal Act for any contribution week (beginning with such week as may be appointed by order of the Minister) shall—

(i) in the case of an employed person of any description referred to in Part I of the First Schedule to this Act; and

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—cont.

(ii) in the case of the employer of an employed person of any description referred to in Part II of that Schedule, or of a person of any such description who is to be treated by virtue of that Part of that Schedule as an employed person ;

be those respectively shown in that Schedule, and accordingly for those cases the said Parts I and II shall, in relation to any such week, be substituted for the corresponding Parts of the First Schedule to the principal Act ; and

- (b) where in any income tax week (beginning with such week as may be appointed by order of the Minister) there is made to or for the benefit of a person over the age of eighteen a payment on account of his remuneration in any one employment of an amount exceeding nine pounds (or the equivalent amount for remuneration not paid weekly), then if the employment was an employed contributor's employment and he either is under pensionable age or has not retired from regular employment—

(i) he shall be liable to pay a graduated contribution based on that payment ; and

(ii) his employer in the employment shall be liable to pay such a contribution in respect of him ; and

(iii) the amount of the graduated contribution payable by either of them shall be four and a quarter per cent. of the amount, up to six pounds, by which the payment exceeds nine pounds (or of the equivalent amount for remuneration not paid weekly).

(2) In each of the four years nineteen sixty-five, seventy, seventy-five and eighty the rates of the contributions payable to the National Insurance Fund by insured persons and employers shall be increased (for that and subsequent years) as follows:—

- (a) beginning with the sixth day of April, an addition of a quarter per cent. shall be made to the rate at which graduated contributions are calculated on the relevant amount of remuneration ; and

- (b) beginning with the first Monday in April—

(i) an addition of fivepence per week shall be made to each of the rates under the First Schedule to this Act, to the rate of any contribution payable as an insured person by a boy or girl under the age of eighteen and to the rate of any employer's contribution payable in respect of a person under that age ; and

(ii) an addition of ninepence per week shall be made to the rate of any other contribution :

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—cont.

Provided that if the Minister with the consent of the Treasury by order so directs, this subsection shall have effect in relation to the increases to be made in any of the said four years with the substitution for the references to a quarter, to fivepence and to ninepence of references to any less amounts specified by the order.

(3) The following provisions shall have effect as regards the contributions payable to the National Insurance Fund out of moneys provided by Parliament, that is to say,—

(a) from the coming into force of the contribution rates fixed by paragraph (a) of subsection (1) of this section, Part V of the First Schedule to the principal Act (which, as set out in Part V of the Third Schedule to the National Insurance (No. 2) Act, 1957, fixes the amounts of the Exchequer supplements) shall be repealed and, subject to paragraph (b) below,—

(i) the Exchequer supplements for contributions as an employed person and for employer's contributions shall be of an amount equal to one quarter of the contributions, but so that no Exchequer supplements shall be payable for graduated contributions; and

(ii) the Exchequer supplements for contributions as a self-employed or non-employed person shall be of an amount equal to one third of the contributions;

(b) in every financial year ending in or after the year nineteen sixty-two, there shall, at such times and in such manner as the Treasury may determine, be paid for the Exchequer supplements in respect of contributions paid in that financial year sums amounting in the aggregate to not less than one hundred and seventy million pounds;

(c) in respect of the financial years ending in the years nineteen sixty-one and sixty-two, there may, at such times and in such manner as the Treasury may determine, be paid in addition to the Exchequer supplements such sums as may be so determined, not exceeding in the aggregate, with the sums paid in respect of the five preceding financial years under subsection (3) of section two of the National Insurance Act, 1954, the three hundred and twenty-five million pounds authorised to be paid under that subsection in respect of those five years.

2.—(1) In relation to graduated contributions references in this Act to remuneration shall be taken to include, and include only, any emoluments assessable to income tax under Schedule E (other than pensions), being emoluments from which tax under Further provisions as to graduated contributions.

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that Schedule is deductible, but shall apply to a payment of any such remuneration, whether or not tax in fact falls to be deducted from that payment.

(2) Except in so far as regulations otherwise provide, the graduated contributions payable in any income tax week in respect of a person's remuneration shall be determined—

(a) by aggregating, and treating as a single payment of remuneration in one employment, all payments made in that week on account of remuneration in the same employment, or in any two or more employments under the same employer, except any employment such that graduated contributions are not payable in respect of it;

(b) by apportioning between the employments any single payment of remuneration in two or more employments under different employers, and (subject to the foregoing paragraph) treating as separate payments the parts apportioned to each employment.

(3) Where a person in any income tax year is paid remuneration from two or more employments, and the graduated contributions paid by him in respect of that remuneration exceed such amount as may be prescribed, the excess—

(a) shall for the purposes of the powers conferred by section eight of the principal Act be treated as representing contributions of the wrong class paid in error; and

(b) shall for the purpose of any right under this Act to benefit be treated as not properly payable.

(4) For the purpose of graduated contributions any sums deducted (whether for contributions, for income tax or otherwise) from any payment of remuneration which is or would but for the deduction be made shall, except in so far as regulations otherwise provide, be treated as paid on account of the remuneration; and for the purpose aforesaid any payment of remuneration shall be disregarded in so far as it is directed by regulations to be treated as coming from sums comprised in a previous payment of remuneration or to be otherwise excluded from the computation of a person's remuneration.

(5) Provision shall be made by regulations for determining the graduated contributions payable where the whole or part of a person's remuneration in any employment is not paid weekly (and accordingly for determining the equivalent amounts mentioned in subsection (1) of section one of this Act), and may include provision for modifying subsection (2) of this section; and regulations may also, for the purpose of graduated contributions, make provision as to the intervals at which a person's remuneration or any part of it is to be treated as paid where it is not all paid at the same intervals of a week or longer and in the amounts due for those or for corresponding intervals.

(6) Regulations may also in relation to graduated contributions make provision—

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—cont.

- (a) for calculating the amounts payable according to a prescribed scale or otherwise adjusting them so as to avoid fractional amounts or otherwise facilitate computation; and
- (b) for requiring that the liability in respect of payments made in an income tax week, in so far as it depends on any condition as to a person's age or retirement, shall be determined as at the beginning of the week or as at the end of it; and
- (c) for securing that liability is not avoided or reduced by an employer following in the payment of persons employed any practice which is abnormal for their employments.

(7) Subject to the provisions of this Act, all the provisions of the principal Act or any other enactment relating to contributions as an employed person and to employer's contributions (other than provisions of the principal Act regulating the number and amount of any contributions, or the periods for which they are payable, or relating to the conditions for or rate of benefit) shall apply to the graduated contributions payable by insured persons and employers by virtue of this Act; and in relation to graduated contributions, references to the payment of remuneration in respect of which a contribution is payable shall be substituted for references to the week for which it is payable in subsection (1) of section six and subsection (3) of section fifty-eight of the principal Act (which relate to an employer's duty to pay the insured person's contribution on his behalf, and to the disposal of employer's contributions paid in respect of mariners not liable for contributions as insured persons).

(8) In this Act "income tax year" means the twelve months beginning with the sixth day of April in any year, and "income tax week" means one of the successive periods in an income tax year beginning with the first day of that year and every seventh day thereafter (the last day of an income tax year or, in the case of an income tax year ending in a leap year, the last two days being accordingly treated as a separate income tax week).

3.—(1) Regulations made under subsection (1) of section eight of the principal Act with the concurrence of the Commissioners of Inland Revenue may provide for graduated contributions to be paid, accounted for and recovered in like manner as and with income tax deducted from the emoluments of an office or employment by virtue of regulations under section one hundred and fifty-seven (pay as you earn) of the Income Tax Act, 1952.

Consequential
changes in
collection of
contributions
and other
matters.

PART I
—cont.

(2) Any such regulations may—

- (a)** make the like provision with respect to any other contributions under the principal Act, under the National Insurance (Industrial Injuries) Act, 1946, or under the National Health Service Contributions Act, 1957 ;
- (b)** apply or extend with or without modifications in relation to any contributions any of the provisions of the Income Tax Acts or of regulations under section one hundred and fifty-seven of the Income Tax Act, 1952 ;
- (c)** make provision for the appropriation of the payments made by any person between his liabilities in respect of income tax and contributions.

(3) Subsection (5) of section one hundred and fifty-seven of the Income Tax Act, 1952 (which penalises a person failing to comply with certain requirements of regulations under that section as to the furnishing of information, production of documents etc.), shall have effect also in relation to regulations made by virtue of this section ; and if a person fails to pay any sums which he is required by regulations so made to pay, he shall be liable to be proceeded against and punished under subsection (6) of section two of the principal Act as for a failure to pay a contribution under that Act, without proof of his failure to pay any particular contribution.

(4) The Commissioners of Inland Revenue shall at such times and in such manner as the Treasury may direct account to the Minister for, and pay to him, the sums estimated by the Commissioners, in such manner as may be so directed, to have been received by them as contributions in accordance with regulations made by virtue of this section.

(5) With a view to securing that contribution years begin in the case of all or any insured persons with the first Monday in April, regulations may, notwithstanding anything in the principal Act, provide for contribution years not so beginning to be on any occasion shorter than fifty-two or longer than fifty-three weeks so as to end immediately before that Monday, and may modify the contribution conditions for any benefit and any other provisions of the principal Act in such manner as appears to the Minister to be expedient to take account of the shorter or longer contribution year.

Benefit

General
provisions as
to graduated
retirement
benefit.

4.—(1) Benefit under the principal Act shall include a graduated retirement benefit based on the graduated contributions paid under this Act.

(2) Subject to the provisions of this Act, graduated retirement benefit shall be payable to any person who is over pensionable age and has retired from regular employment, and shall be an

increase in the weekly rate of his retirement pension equal to sixpence for each unit, ascertained in accordance with subsections (3) and (4) of this section, of the graduated contributions properly paid by him as an insured person.

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—cont.

(3) For the purpose of graduated retirement benefit the units of graduated contributions shall be as follows:—

- (a) in the case of contributions calculated at the rate of four and a quarter per cent. specified in subsection (1) of section one of this Act, the units shall be seven pounds ten shillings for men and nine pounds for women; and
- (b) in the case of contributions calculated at any rate having effect under subsection (2) of that section, the units shall be of such amounts as may be specified for men and women respectively by order of the Minister, being amounts which maintain the same proportions as under the foregoing paragraph between the percentage used in calculating the contributions and the amount of the unit, except for adjusting the amount of a unit to the nearest shilling above, or to the nearest shilling below, the proportionate amount.

(4) Where a person's contributions calculated at any of the said rates do not make an exact number of units, then—

- (a) the incomplete fraction of a unit and any similar fraction resulting from his contributions calculated at any of the other rates shall be added together to produce (so far as they go) a further unit or units;
- (b) subject to the foregoing paragraph, any incomplete fraction of a unit (including a fraction resulting from the addition under the foregoing paragraph) shall, if it is one half or more, be treated as a complete unit.

(5) Where a person does not retire from regular employment on attaining pensionable age, then for the purpose of calculating the graduated retirement benefit payable to him from the date of his retirement there shall be added to the amount of the graduated contributions properly paid by him one half of the aggregate graduated retirement benefit which would have been payable to him for the period before that date if he had retired from regular employment on attaining pensionable age and had received that benefit for the whole of the period without any interruption or abatement; and the number of units paid by him shall be determined as if the addition made in respect of benefit for any week had been a contribution paid at the rate appropriate to a payment of remuneration made in that week.

(6) The foregoing subsections shall, as respects the amount of the increase in a retirement pension, have effect subject to the provisions of the principal Act reducing the weekly rate of a retirement pension in respect of the beneficiary's earnings;

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—*cont.*

and the weekly rate of any unemployment or sickness benefit payable by virtue of section twenty-six of that Act (as amended by section two of the National Insurance Act, 1957) to a person over pensionable age shall be determined without regard to the provisions of this Act relating to graduated retirement benefit.

(7) A person who has attained pensionable age and retired from regular employment, but is not entitled to a retirement pension, shall be treated for the purpose of the foregoing subsections as receiving a retirement pension at a nominal weekly rate:

Provided that—

- (a) this subsection shall not confer any right to graduated retirement benefit on a person who would be entitled to a retirement pension but for some provision of the principal Act or of regulations disqualifying him for receipt of it; and
- (b) regulations may provide that any right by virtue of this subsection to benefit at less than a specified weekly rate shall be satisfied either altogether or for a specified period by the making of a single payment of the prescribed amount.

(8) Notwithstanding that the provisions of the principal Act reducing the weekly rate of benefit in respect of the beneficiary's earnings are applied by this Act to graduated retirement benefit, the power of the Minister under section two of the National Insurance Act, 1956, to make regulations amending those provisions shall include power to provide that they shall not reduce the amounts payable as graduated retirement benefit, but that those amounts shall be payable as if it were a separate benefit not subject to the said provisions.

Special provisions as to graduated retirement benefit for widows.

5.—(1) Subject to the provisions of this section, where a man, having paid graduated contributions as an insured person, dies leaving a widow, and she either has attained pensionable age at the time of his death, or remains his widow when she attains that age, then the last foregoing section shall apply as if the increase in the weekly rate of her retirement pension provided for by subsection (2) were the amount there specified by reference to her graduated contributions plus sixpence for every shilling or part of a shilling of the weekly rate of his graduated retirement benefit.

(2) For the purpose of subsection (1) of this section, the weekly rate of the husband's graduated retirement benefit shall (whether or not he was receiving or entitled to receive any such benefit) be taken to have been the weekly rate appropriate to the amount of graduated contributions paid by him together with any addition under subsection (5) of the last foregoing section; and where

at his death he had attained pensionable age but had not retired from regular employment, that addition shall be computed as if he had retired from regular employment immediately before his death.

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—cont.

(3) A woman's right to graduated retirement benefit by virtue of this section shall be brought into account under subsection (5) of the last foregoing section in determining the graduated retirement benefit payable to her under that section:

Provided that, if the husband died after she attained pensionable age, she shall for the purpose of this subsection be treated as not having attained pensionable age until the date of his death.

(4) A woman's right to graduated retirement benefit by virtue of this section in respect of a husband she marries after she attains pensionable age shall be subject to such additional conditions as may be prescribed; and except as may be provided by regulations a woman more than once married shall not be entitled for the same period to any graduated retirement benefit by virtue of this section in respect of more than one of the husbands.

(5) Regulations may provide that where a woman is entitled to graduated retirement benefit and to a widowed mother's allowance the graduated retirement benefit shall be an increase in the weekly rate of that allowance; and where that benefit is such an increase, subsections (6) and (7) of the last foregoing section shall not apply, but the provisions of this Act shall, as respects the amount of the increase in the allowance, have effect subject to the provisions of the principal Act reducing the rate of a widowed mother's allowance in respect of the beneficiary's earnings.

6.—(1) The amount of the increase under subsection (4) of section twenty of the principal Act in the weekly rate of a retirement pension for contributions paid by the beneficiary in respect of the period after his attaining pensionable age shall be one shilling for twelve contributions (instead of one shilling and sixpence for twenty-five); and the increase under that subsection as applied by subsection (3) of section twenty-one of that Act in the rate of a retirement pension payable to a woman by virtue of her husband's insurance shall, subject to any regulations under the said subsection (3), be the same, except that as respects any period during which the husband is alive the increase shall be sixpence for twelve contributions (instead of one shilling for twenty-five).

Amendment as to increases in retirement pensions for contributions paid after pensionable age.

(2) Accordingly in the said subsections there shall be made the following amendments, in place of those made by section four of the National Insurance Act, 1951, that is to say,—

(a) in subsection (4) of section twenty of the principal Act for the words "twenty-five contributions" there shall be substituted the words "twelve contributions"; and

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—cont.

(b) in subsection (3) of section twenty-one of the principal Act there shall be inserted at the end of paragraph (b) the words—

“and

(c) the reference to one shilling shall, as respects any period during which her husband is alive but not as respects any period after his death, be construed as a reference to sixpence”;

and subsections (3) to (5) of section four of the National Insurance Act, 1951, are hereby repealed.

(3) The foregoing subsections shall not affect the operation of any of the enactments there referred to as respects contributions paid for contribution weeks commencing before such day as the Minister may by order appoint; but regulations may make transitional provision for cases where the relevant contributions so paid do not make up twenty-five or a multiple of twenty-five contributions (including provision for making up the contributions so paid to a multiple of twenty-five with the aid of contributions paid for later weeks, or making up the contributions paid for later weeks to a multiple of twelve with the aid of the said contributions).

(4) Section seventy-seven of the principal Act (which requires a preliminary draft of regulations to be submitted to the National Insurance Advisory Committee before the regulations are made) shall not apply to any regulations under subsection (3) of this section.

PART II

NON-PARTICIPATING EMPLOYMENTS

General provisions as to non-participating employments.

7.—(1) Subsection (1) of section one of this Act shall not affect the rate of the contribution payable by or in respect of an employed person for any contribution week by virtue of any employment which is a non-participating employment, nor shall any graduated contribution be payable in respect of a payment of remuneration from an employment which, at the time of the payment, is a non-participating employment; but the Exchequer supplement payable in respect of any contribution shall be the same as if this subsection had not been passed.

(2) Subject to the provisions of this Act, an employed contributor's employment shall, in relation to any person employed in it who is over the age of eighteen and under pensionable age, be a non-participating employment for any period during which—

(a) his service in it is service qualifying him under a recognised superannuation scheme for retirement benefits by way of pension which are on the whole as favourable as the right to benefit to be derived from graduated

contributions (in this Act referred to as "equivalent pension benefits"); and

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—cont.

- (b) there is in force a certificate issued under this section to the employer that the employment is to be treated as a non-participating employment;

and an employment which is a non-participating employment in relation to a person employed in it immediately before he attains pensionable age shall, if the conditions of this Part of this Act other than paragraph (a) of this subsection are satisfied, continue to be a non-participating employment in relation to him so long as he continues to be employed in it and has not retired from regular employment.

(3) Where an insured person's period of service in a non-participating employment comes to an end otherwise than by his death, and at the end of it he is not assured of equivalent pension benefits in respect of it, then subject to the provisions of this Act there shall be due to the National Insurance Fund from his employer in that employment a payment in lieu of contributions equal to the difference between—

- (a) the aggregate amount of the contributions which would have been payable by or in respect of the insured person during that period if on the first day of each contribution week beginning in the period contributions (including graduated contributions) had been payable by and in respect of him at the rates provided for by section one of this Act and the graduated contribution in each week had been payable in respect of a weekly payment of remuneration of fifteen pounds made on that day; and
- (b) the aggregate amount of the contributions which would have been payable by or in respect of him for that period if for each such contribution week contributions had been payable at the rates applying to non-participating employments;

and on the making of any payment required by this subsection the insured person shall be treated for the purposes of this Act as having paid such graduated contributions payable by him as are referred to in paragraph (a) above (or, if the payment is of less than the full amount required, a proportionate part of such contributions).

(4) Where a person is in the same contribution week employed both in a non-participating employment and in another employed contributor's employment, then unless provision to the contrary is made by regulations, any contribution payable by or in respect of him for that week shall be payable at the rate appropriate to a non-participating employment.

PART II
—cont.

(5) Where a person is in any income tax year employed both in a non-participating employment and in another employed contributor's employment, then any question as to the amount (if any) by which the graduated contributions paid by him in respect of remuneration paid in that year exceed the amount prescribed under subsection (3) of section two of this Act shall be determined as if (in addition to those contributions) on the first day of any contribution week in which he was employed in a non-participating employment he had paid a graduated contribution in respect of a weekly payment of remuneration of fifteen pounds made on that day:

Provided that if he is treated under subsection (3) of this section as having on any such day paid a graduated contribution or part of one, this subsection shall treat him as paying on that day only such contribution (if any) as is necessary in order to make up the amount he is treated as having paid to that of such a graduated contribution as aforesaid.

(6) For the purpose of determining liability to graduated contributions, an employment shall be deemed to be a non-participating employment in relation to a person previously (but no longer) employed in it, if—

- (a) it was a non-participating employment in relation to him when he was last employed in it; or
- (b) he ceased to be employed in it on or before attaining the age of eighteen, and on attaining that age was employed in a non-participating employment under the same employer in place of it.

(7) Regulations shall provide for the issue to employers of certificates specifying the employments which are to be treated either generally or in relation to any description of persons specified in the certificate as non-participating employments, and for the cancellation, variation or surrender of any certificate or issue of an amended certificate on any change of circumstances affecting the treatment of an employment as a non-participating employment, and (subject to the exclusion by subsection (2) of this section of persons under the age of eighteen or over pensionable age) any such certificate for the time being in force shall be conclusive that the employments included in it are non-participating employments:

Provided that—

- (a) no such certificate or cancellation, surrender or variation of such a certificate shall have effect from a date earlier than the beginning of the contribution week following that in which it is issued or made; and
- (b) subject to the provisions of this Act, an employment otherwise satisfying the conditions for inclusion in such

a certificate shall be so included if and so long as the employer so elects, and not otherwise.

PART II
—cont.

(8) Provision may for the purposes of this Part of this Act be made by regulations—

- (a) for treating a person's employment, where it begins or ends in the course of a contribution week or of an income tax week, as doing so at the beginning or end of the week ;
- (b) for disregarding changes in a person's employment due to the death of an employer or other causes, and for treating employment under the new employer as a continuation of that under the former employer, and treating any certificate issued to or election made by the former employer as issued to or made by the new employer ;
- (c) for disregarding temporary interruptions in a person's employment, and for treating the employment as continuing during the interruption ;
- (d) generally as to the circumstances in which a person's employment is or is not to be treated as having come to an end.

8.—(1) For the purposes of this Part of this Act, equivalent pension benefits, in relation to any period of service in an employment, comprise, and comprise only, retirement benefits by way of pension as respects which the following conditions are satisfied, that is to say,—

Further provisions as to treatment of employments as non-participating employments.

- (a) the benefits consist of or include a pension which (subject to any condition as to retirement) commences not later than insured pensionable age, and there is no condition postponing beyond insured pensionable age the age at which retirement on pension is allowed ; and
- (b) there is no provision for the surrender, commutation or assignment of the pension or, if there is, some part of the pension is excluded from the operation of it ; and
- (c) the pension or the said part of it is payable for life, and is not capable of being terminated or suspended except for such causes, if any, as may be prescribed ; and
- (d) apart from any period before insured pensionable age, the pension or the said part of it is of an amount not less, when expressed as a weekly rate, than the graduated retirement benefit which would be payable to the person employed in return for an amount of graduated contributions equal to one such contribution paid in each week of the period of service in respect of a weekly payment of remuneration of fifteen pounds.

PART II
—cont.

(2) Where service in an employment contingently qualifies a person employed in it for retirement benefits by way of pension, then, in determining whether the employment can be treated as a non-participating employment in relation to the persons from time to time so employed or any of them, a person's service shall be treated as qualifying him for such pension benefits as, in the existing circumstances, can reasonably be expected to accrue to him from a period of service of appropriate length, on the assumption that he remains in an employment qualifying him for those benefits until insured pensionable age (or as near to that age as the terms of the employment allow) but no longer.

(3) In determining whether an employment can be treated as a non-participating employment in a case where a limit on the maximum amount of the benefits payable or any description of them operates to prevent service beyond a given length from qualifying a person for further benefits, the qualification arising from any period of service shall be determined on the assumption that the total service does not exceed that length.

(4) Any scheme or arrangement having for its object or one of its objects to make provision in respect of persons serving in particular employments for providing them with retirement benefits by way of pension shall be a recognised superannuation scheme for the purposes of this Part of this Act—

(a) if it is established by Act of Parliament or of the Parliament of Northern Ireland, or other instrument having the force of law ; or

(b) if the benefits for which service in those employments qualifies a person, or such part of them as has to be taken into account to constitute them equivalent pension benefits, are secured by irrevocable trust, contract of assurance or annuity contract satisfying such conditions as may be prescribed, or in such other manner as may be prescribed, and the provision made to enable benefits to be paid (taking into account any additional resources which could and would be provided by the employer, or any person connected with the employer, to meet any deficiency) is adequate to ensure payment in full of the benefits or part aforesaid.

(5) In this section "insured pensionable age" means pensionable age for the purposes of the principal Act:

Provided that where the date for a person's retirement on pension under a superannuation scheme is fixed by reference to his attaining that age and so as to fall not later than six months after he does so, but does not depend solely on age, this section shall apply in relation to his benefits under that scheme as if he did not attain that age before that date.

PART II
—cont.

Further provisions as to payments in lieu of contributions.

9.—(1) Except as provided by this section, the provisions of this Part of this Act relating to the making of a payment in lieu of contributions at the end of a person's period of service in a non-participating employment shall apply whether the period comes to an end by reason of the termination of his service in that employment or by reason of the employment ceasing to be a non-participating employment, and, subject to any regulations under subsection (8) of section seven of this Act, where that period is brought to an end by an employer's death, shall apply as if it had come to an end immediately before the death.

(2) For the purpose of the said provisions, if an employment becomes or ceases to be a non-participating employment in the course of a person's service in it, his service before and after the time when it does so shall be treated as service in different employments.

(3) For the purpose of the said provisions a person having at the end of his service in a non-participating employment equivalent pension benefits in respect of it shall be deemed to be assured of those benefits if, and shall be deemed not to be assured of them unless, either—

(a) he is absolutely and indefeasibly entitled to them, and the manner in which they are secured and the provision made for their payment are such as may be prescribed ;
or

(b) such other conditions as may be prescribed are satisfied ;
and regulations may provide for treating as having effect from the end of a person's service in a non-participating employment any option exercised or other thing done within the prescribed period thereafter in relation to his retirement benefits in respect of it.

(4) Where—

(a) a payment in lieu of contributions would, but for this subsection, fall to be made in respect of a person on the coming to an end of his service in a non-participating employment ; and

(b) on the coming to an end of that service, or within the prescribed period thereafter, he enters another non-participating employment ; and

(c) his service in the previous employment is service qualifying him for equivalent pension benefits under the recognised superannuation scheme relating to his new employment (on the like assumptions as are to be made under subsections (2) and (3) of section eight of this Act in relation to his service in the new employment) ;
and

(d) if the scheme is a recognised superannuation scheme by virtue of paragraph (b) of subsection (4) of section

PART II
—cont.

eight of this Act, the conditions of that paragraph are satisfied in relation to the said benefits ;

then for the purpose of any liability to make a payment in lieu of contributions in respect of him the two employments shall be treated as a single continuous employment (any interval being disregarded) :

Provided that—

- (i) this subsection shall not apply unless either both employments are under the same employer or such other conditions as may be prescribed are satisfied ; and
- (ii) regulations may direct that paragraph (c) of this subsection shall not apply in any prescribed cases in which provision is made by the recognised superannuation scheme relating to the new employment for taking into account in any manner the service in the previous employment.

(5) Provision may be made by regulations for excluding or restricting the liability to make payments in lieu of contributions in cases where a person serves at the same time in more than one employment, and for modifying the operation of any provision of this Act in relation to any such payment of which the amount is reduced by virtue of this subsection ; and regulations may also modify the operation of subsection (4) of this section in cases where a person serves as aforesaid or would, apart from the regulations, be treated by virtue of that subsection as so serving.

(6) Where an insured person's period of service in a non-participating employment comes to an end otherwise than by his death, and at the end of it he is over pensionable age, then for the purpose of any liability to make a payment in lieu of contributions in respect of that service he shall be deemed to be assured at the end of it (in lieu of any pension benefits he then has) of the same pension benefits, save as provided by regulations under subsection (3) of this section, as those of which he would have been assured on the coming to an end of the service on his attaining pensionable age by his then retiring from the employment ; and any question whether those benefits are equivalent pension benefits, and any question as to the amount of or as to the graduated contributions attributable to any payment in lieu of contributions, shall be determined as if the service had come to an end by his so retiring :

Provided that where the date for his retirement on pension under the recognised superannuation scheme relating to the employment is fixed by reference to his attaining that age and so as to fall not later than six months after he does so, but does not depend solely on age, this subsection shall apply as if he did not attain that age before that date.

PART II
—cont.

(7) A payment in lieu of contributions shall become due at such time as may be prescribed after the end of the period of service to which it relates; and if any person fails to make any such payment for which he is liable, he shall be liable to be proceeded against and punished under subsection (6) of section two of the principal Act as for a failure to pay a contribution.

(8) Subsection (1) of section eight of the principal Act (which enables regulations to be made as to the payment and collection of contributions, etc.) shall apply to payments in lieu of contributions as it applies to contributions, and for the purposes of paragraph (b) of that subsection any such payment shall be deemed to be payable by an employer on behalf of the insured person in respect of whom it is payable.

(9) In paragraph (b) of subsection (6) of section forty-three of the principal Act (which relates to the decision in legal proceedings of questions as to the payment of contributions) the reference to contributions shall include payments in lieu of contributions.

10.—(1) Where on the coming to an end of an insured person's service in a non-participating employment—

(a) he (or, by virtue of a connection with him, any other person) is entitled to a refund of any payments made under the recognised superannuation scheme by or in respect of him towards the provision of benefits under the scheme; and

(b) a payment in lieu of contributions falls to be made in respect of him under this Act;

then, subject to the provisions of this section, the person liable for the payment in lieu of contributions shall be entitled on making that payment or any part of it to recover one half of the sum paid by him from the person liable for the refund:

Provided that the amount recoverable shall not exceed the amount of the refund, or so much of it as has not been made.

(2) Where the period taken into account in fixing the amount of a payment does not coincide with that in respect of which the refund is to be made, then (subject to subsection (3) of this section) the amount recoverable under this section shall be determined by reference to so much of the payment and of the refund as are referable to the same period.

(3) The amount which may be recovered under this section in respect of any payment in lieu of contributions shall be increased by such amount as may be prescribed where—

(a) under subsection (4) of the last foregoing section the insured person's service in any previous employment is treated in fixing the payment in lieu of contributions

X*

PART II
—cont.

as service in the employment in respect of which the refund is made ; and

- (b) the refund includes any amount in respect of a payment made by or in respect of the insured person towards the provision for him of benefits under the scheme in respect of service in the previous employment.

(4) Where the person liable for the payment in lieu of contributions is himself liable for the refund, he shall be entitled to retain out of the refund the amount which he could recover under this section from another person who was liable for the refund.

(5) The amount of the refund shall be reduced by any amount recovered or retained under this section ; and provision shall be made by regulations for requiring the making of refunds to be delayed for the purpose of enabling any right of recovery conferred by this section to be exercised, and shall have effect notwithstanding anything in any enactment relating to the making of the refund.

(6) Where on the coming to an end of an insured person's service in a non-participating employment—

- (a) he (or, by virtue of a connection with him, any other person) is entitled to a refund of any payments made by or in respect of him under the recognised superannuation scheme relating to a previous employment towards the provision of benefits under that scheme ; and

- (b) a payment in lieu of contributions falls to be made in respect of him, and under subsection (4) of the last foregoing section his service in the two employments is treated as service in one employment in fixing that payment ;

then in respect of that payment the person liable for it shall have the like right of recovery from that refund (so far as the payment is not recoverable out of a refund in respect of a later employment) as a person has under the foregoing subsections where a payment in lieu of contributions and a refund fall to be made on the coming to an end of service in the employment in respect of which the refund is to be made ; and subsection (5) of this section shall apply accordingly.

(7) Notwithstanding any contract to the contrary, a person shall not be entitled to recover any part of a payment in lieu of contributions made or to be made by him from the person in respect of whom it is payable or, except in accordance with this section, out of any moneys payable to or for the benefit of that person.

11.—(1) There shall be included among the debts which—

PART II

—cont.

- (a) under section thirty-three of the Bankruptcy Act, 1914, are to be paid in priority to all other debts in the distribution of the property of a bankrupt or a deceased debtor ; or
- (b) under section one hundred and eighteen of the Bankruptcy (Scotland) Act, 1913, are to be paid in priority to all other debts in the division of a bankrupt's estate ; or
- (c) under section three hundred and nineteen of the Companies Act, 1948, are to be paid in priority to all other debts in the winding up of a company, or under section ninety-four of that Act are on an appointment of a receiver on behalf of debenture holders or taking of possession by or on behalf of debenture holders to be paid in priority to any claim for principal or interest in respect of the debentures ;

Recovery of payments in lieu of contributions in event of bankruptcy, liquidation, etc.

any payment in lieu of contributions payable on the termination of a person's employment before or by the effect of the receiving order or death, the award of sequestration, the winding up order or resolution, or the appointment of the receiver or taking of possession, as the case may be :

Provided that, where any such payment is payable in respect of a period of service of more than a year, the amount to be so paid in priority shall be limited to the amount of the payment in lieu of contributions which would have been payable if the service had been confined to the last year taken into account in fixing the actual amount of the payment.

(2) Where—

- (a) by or by virtue of the foregoing subsection the whole or part of a payment in lieu of contributions is required to be paid in priority to other debts of the employer or his estate ; and
- (b) the person liable for that payment would be entitled to recover the whole or part of any sum paid by him on account of it from another person either under section ten of this Act or under any provision made by the relevant superannuation scheme ;

then that other person shall be liable for any part of the payment in lieu of contributions for the time being unpaid :

Provided that no person shall be liable by virtue of this subsection for an amount in excess of the sum which might be recovered from him as aforesaid if the payment in lieu of contributions had been paid in full by the employer, after deducting from that sum any amount which has been or may be recovered from him in respect of any part of that payment paid otherwise than under this subsection.

PART II
—cont.

(3) The payment under subsection (2) of this section of any amount in respect of a payment in lieu of contributions shall have the same effect upon the rights and liabilities of the person making it (other than his liabilities under that subsection) as if it had been a payment of that amount on account of the sum recoverable from him in respect of that payment in lieu of contributions as mentioned in paragraph (b) of that subsection.

**Special
provisions for
certain
statutory
superannu-
ation schemes.**

12.—(1) In relation to employments of any class to which this section applies, the appropriate Minister may by regulations direct that elections with a view to the issue, variation, cancellation or surrender of certificates under this Part of this Act shall be made and revoked by him instead of by the employer.

(2) Any such regulations may also make provision for other things which by or under this Part of this Act are required or authorised to be done by or to the employer to be done instead by or to the appropriate Minister, for treating employments of the class in question as employments under a single employer different from the employer in any other employment, and for the recovery from the employer of payments in lieu of contributions made by the appropriate Minister instead of by the employer.

(3) Before making any regulations under this section the appropriate Minister shall consult with such bodies concerned with employments of the class in question as appear to him fairly to represent the interests of employers and employed persons in those employments.

(4) Any expenses of a Minister of the Crown under this section, including (but without prejudice to any right of recovery or retainer under this Act) expenses in making payments in lieu of contributions, shall be defrayed out of moneys provided by Parliament; and any sums recovered or retained by a Minister of the Crown in respect of any such payments shall be paid into the Exchequer.

(5) Subject to the following subsections, the employments in which a person's service qualifies him for retirement benefits by way of pension under the enactments specified in any entry in the Second Schedule to this Act shall constitute a class to which this section applies, and in relation to that class the appropriate Minister shall be the Minister mentioned in the second column in that entry.

(6) Where service in any employment would qualify a person as aforesaid under the enactments specified in any such entry but for rules having effect under section two of the Superannuation (Miscellaneous Provisions) Act, 1948 (which relates to persons transferring to or from certain employments), the employment shall be treated as falling within the class to which that entry relates, and as not falling within any other class to which this section applies.

(7) Where a local Act contains a provision for the payment of retirement benefits by way of pension for service which, but for the provision, would qualify a person for such benefits under the enactments specified in any entry in the Second Schedule to this Act, that provision shall be deemed to be included among the enactments specified in that entry.

PART II
—cont.

13.—(1) Regulations under section forty-three of the principal Act shall provide—

Adjudication
and
administra-
tion.

- (a) for the determination by an officer appointed by the Minister (hereafter in this section referred to as “the registrar”) of any question whether an employment is to be treated as a non-participating employment, or as to the persons in relation to whom or the period for which it is to be so treated, and for the issue, variation and cancellation by the registrar of the certificates under this Part of this Act specifying the employments which are to be so treated ;
- (b) for enabling any such question, instead of being determined as aforesaid, to be referred to an adjudicator (being a barrister or advocate of not less than ten years’ standing) appointed for the purposes of this Part of this Act, and for enabling appeals to be brought to such an adjudicator from decisions of the registrar ;
- (c) for enabling the functions of the registrar to be exercised by officers appointed to act as his deputies by the Minister, and for enabling an adjudicator to have the assistance of one or more assessors in dealing with a case.

(2) Regulations may also make provision for any incidental matters connected with the operation of this Part of this Act, including the information which may be required from any person, and in particular shall provide—

- (a) for enabling the registrar to cancel or vary any such certificate as aforesaid where he has reason to suppose that any employments to which it relates ought not to be treated as non-participating employments in accordance with the certificate and the employer does not show that they ought ;
- (b) for regulating the manner in which employers are to make or revoke an election with a view to the issue, variation, cancellation or surrender of such a certificate, and requiring them to give notice for the purpose of informing employed persons and others of their intention to do so ;
- (c) for enabling the registrar to defer the issue or variation of such a certificate so as to enable the relevant election

PART II
—*cont.*

to be further considered in the light of any representations made by persons to whom notice of the election is required by regulations to be given or by organisations representing any such persons ;

- (d) for requiring employers (except in such cases as may be prescribed) to give notice to the Minister when a person's period of service in a non-participating employment begins or comes to an end.

(3) Any appointment for the purposes of this Part of this Act of an adjudicator, as required by subsection (1) of this section, shall be made by the Lord Chancellor, after consultation, if the person appointed is an advocate, with the Lord President of the Court of Session.

(4) The House of Commons Disqualification Act, 1957, shall have effect, in its application both to the House of Commons of the Parliament of the United Kingdom and to the Senate and House of Commons of Northern Ireland, as if there were added at the end of Part I of the First Schedule the entry " Adjudicator appointed for the purposes of Part II of the National Insurance Act, 1959, and any corresponding judicial office under any Act of the Parliament of Northern Ireland passed for purposes similar to that Act."

PART III

MISCELLANEOUS AND GENERAL

Construction with principal Act, and adaptation of powers relating to special classes.

14.—(1) This Act shall be construed as one with the principal Act.

(2) Accordingly (and without prejudice to the generality of the foregoing subsection) the provisions of this Act shall be subject to the powers conferred by the principal Act or any other enactment to prescribe modifications of, or exceptions or additions to, the provisions of that Act ; and—

- (a) the reference to the foregoing provisions of that Act in subsection (2) of section sixty-five of it (which confers such a power in relation to existing contributors and existing beneficiaries) ; and
- (b) the reference to the foregoing sections of that Act in subsection (2) of section seventy-one of it (which confers such a power in relation to certain entrants into insurance who were over school age at the coming into force of that Act) ;

shall include references to the provisions of this Act.

(3) The powers conferred by subsection (2) of section sixty-five of the principal Act (as extended by subsection (2) of this section) shall include power to prescribe such modifications,

additions and exceptions as appear to the Minister to be necessary or expedient in consequence of any provision of this Act.

PART III
—cont.

(4) The foregoing provisions of this section shall not have effect so as to require regulations under section fifty-nine of the principal Act (by virtue of subsection (2) of that section) to make any provision for excepting married women from liability to pay graduated contributions.

15.—(1) Without prejudice to the construction of this Act as one with the principal Act, the powers conferred by subsection (4) of section sixty-nine of the principal Act to make provision by regulations for modifying or winding-up in connection with the passing of that Act certain schemes for the provision of pensions or other benefits shall include power—

Modification of
superannuation
schemes.

(a) to make provision in connection with the passing of this Act or in connection with the subsequent operation of any provision of it (and in particular with the operation of the provisions under which employments become or cease to be non-participating employments); and

(b) to make provision in relation to schemes which have come into existence after the passing of that Act or which come into existence after the passing of this Act.

(2) The said powers shall be exercisable so as to authorise schemes to be modified in any manner approved by an authority designated for the purpose by the regulations, or to be wound up on such terms as may be so approved.

(3) Notwithstanding anything in the said subsection (4), the said powers shall be exercisable in relation to any scheme by the Chief Registrar of Friendly Societies unless the Treasury have determined under that subsection that a Minister of the Crown or Government department is the appropriate Minister or department in relation to that scheme; and accordingly in that subsection for the words "if the Treasury determine that there is no appropriate Minister or department" there shall be substituted the words "in default of any such determination".

16.—(1) Any order made by the Minister under this Act may be revoked or varied by a subsequent order made by him.

Supplementary
provisions as
to orders and
regulations.

(2) Any power of the Minister to make orders under this Act shall be exercisable by statutory instrument, and that instrument shall, in the case of an order under subsection (2) of section one or subsection (3) of section four, be subject to annulment in pursuance of a resolution of either House of Parliament and, in the case of an order under subsection (1) of section one or subsection (3) of section six, be laid before Parliament after being made.

PART III
—cont.

(3) For the purpose of any provision of the principal Act relating to regulations under that Act, and for the purposes of the Statutory Instruments Act, 1946, regulations under this Act shall be treated as regulations under the principal Act.

Expenses.

17. Save as otherwise provided by this Act, any expenses incurred by the Minister or any other Government department in carrying this Act into effect—

- (a) so far as they are estimated by the Minister to be attributable to the collection of contributions under the National Insurance (Industrial Injuries) Act, 1946, shall be deemed to be expenses incurred in carrying that Act into effect for the purposes of section sixty of that Act (which provides for the payment of such expenses out of moneys provided by Parliament, subject to reimbursement to the Treasury out of the Industrial Injuries Fund); and
- (b) so far as they are so estimated to be attributable to the collection of national health service contributions shall be paid out of moneys provided by Parliament; and
- (c) subject to the foregoing paragraphs shall be deemed to be expenses incurred in carrying the principal Act into effect for the purposes of section thirty-eight of that Act (which provides for the payment of such expenses out of moneys provided by Parliament, subject to reimbursement to the Treasury out of the National Insurance Fund).

**Disclosure of
information by
revenue
officers.**

18. No obligation as to secrecy imposed by statute or otherwise on persons employed in relation to Inland Revenue shall prevent information obtained in connection with the assessment or collection of income tax chargeable under Schedule E from being disclosed by or under the authority of the Commissioners of Inland Revenue in connection with the operation of any enactment or regulations relating to the calculation or collection of graduated contributions under this Act or under any corresponding legislation of the Parliament of Northern Ireland, or of other contributions collected in the same way as any such graduated contributions.

**Citation,
extent, &c.**

19.—(1) This Act may be cited as the National Insurance Act, 1959, and shall be included among the Acts which may be cited together as the National Insurance Acts, 1946 to 1959.

(2) Except in so far as the context otherwise requires, any reference in this Act to any enactment is a reference to that enactment as amended by or under any Act.

(3) This Act, except in so far as it expressly refers to Northern Ireland, shall not extend to Northern Ireland; but this shall be without prejudice to the operation in relation to matters arising out of this Act of any provision relating to Northern Ireland contained in the principal Act, and the power of the Parliament of Northern Ireland by virtue of subsection (4) of section sixty-three of that Act to enact provisions corresponding to any provision of that Act shall extend to enacting provisions corresponding to any provision of this Act.

PART III
—cont.

SCHEDULES

FIRST SCHEDULE

Section 1.

NEW RATES OF CERTAIN CONTRIBUTIONS

PART I

EMPLOYED PERSONS

Description of employed person	Weekly rate of contribution
	s. d.
Men between the ages of 18 and 70 (not including men over the age of 65 who have retired from regular employment)—	
Earning remuneration at a weekly rate exceeding 60s.	5 9½
Earning remuneration at a weekly rate of 60s. or less	3 0½
Women between the ages of 18 and 65 (not including women over the age of 60 who have retired from regular employment)—	
Earning remuneration at a weekly rate exceeding 60s.	5 4½
Earning remuneration at a weekly rate of 60s. or less	2 10½

For the purposes of this Part and Part II of this Schedule a person shall be deemed to be earning remuneration at a weekly rate of sixty shillings or less if, but only if, his remuneration does not include the provision of board and lodging by the employer and the rate of the remuneration neither exceeds nor is deemed in accordance with regulations made under subsection (5) of section seventy-eight of the principal Act to exceed sixty shillings a week, and to be earning remuneration at a weekly rate exceeding sixty shillings in any other case.

1st Sch.
—cont.

PART II

EMPLOYERS

Description of employed person	Weekly rate of contribution
Men over the age of 18—	s. d.
Earning remuneration at a weekly rate exceeding 60s., or not being liable to pay a contribution as an employed person... ..	5 9½
Earning remuneration at a weekly rate of 60s. or less and being liable to pay a contribution as an employed person... ..	8 6½
Women over the age of 18—	
Earning remuneration at a weekly rate exceeding 60s., or not being liable to pay a contribution as an employed person... ..	5 4½
Earning remuneration at a weekly rate of 60s. or less and being liable to pay a contribution as an employed person... ..	7 10½

For the purpose of this Part of this Schedule a person over pensionable age, not being an insured person, shall be treated as an employed person if he would be an insured person were he under pensionable age and would be an employed person were he an insured person.

Section 12.

SECOND SCHEDULE

STATUTORY SUPERANNUATION SCHEMES FOR WHICH
SPECIAL PROVISION IS MADE

<i>Pension enactments</i>	<i>Appropriate Minister</i>
1. The Teachers Superannuation Acts, 1918 to 1956.	The Minister of Education.
2. Section one hundred and one of the Education (Scotland) Act, 1946 (as amended by section ten of the Education (Scotland) Act, 1956).	The Secretary of State for Scotland.
3. The Local Government Superannuation Acts, 1937 to 1953.	The Minister of Housing and Local Government.
4. The Local Government Superannuation (Scotland) Acts, 1937 to 1953.	The Secretary of State for Scotland.
5. Section sixty-seven of the National Health Service Act, 1946.	The Minister of Health.

*Pension enactments**Appropriate Minister*

- | | |
|--|---|
| 6. Section sixty-six of the National Health Service (Scotland) Act, 1947. | The Secretary of State for Scotland. |
| 7. Section twenty-six of the Fire Services Act, 1947, in its application to England and Wales. | The Secretary of State for the Home Department. |
| 8. Section twenty-six of the Fire Services Act, 1947, in its application to Scotland. | The Secretary of State for Scotland. |
| 9. The Police Pensions Act, 1948, in its application to England and Wales. | The Secretary of State for the Home Department. |
| 10. The Police Pensions Act, 1948, in its application to Scotland. | The Secretary of State for Scotland. |

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Bankruptcy (Scotland) Act, 1913	3 & 4 Geo. 5. c. 20.
Bankruptcy Act, 1914	4 & 5 Geo. 5. c. 59.
Statutory Instruments Act, 1946	9 & 10 Geo. 6. c. 36.
National Insurance (Industrial Injuries) Act, 1946	9 & 10 Geo. 6. c. 62.
National Insurance Act, 1946	9 & 10 Geo. 6. c. 67.
Education (Scotland) Act, 1946	9 & 10 Geo. 6. c. 72.
National Health Service Act, 1946	9 & 10 Geo. 6. c. 81.
National Health Service (Scotland) Act, 1947 ...	10 & 11 Geo. 6. c. 27.
Fire Services Act, 1947	10 & 11 Geo. 6. c. 41.
Police Pensions Act, 1948	11 & 12 Geo. 6. c. 24.
Superannuation (Miscellaneous Provisions) Act, 1948	11 & 12 Geo. 6. c. 33.
Companies Act, 1948	11 & 12 Geo. 6. c. 38.
National Insurance Act, 1951	14 & 15 Geo. 6. c. 34.
Income Tax Act, 1952	15 & 16 Geo. 6 and 1 Eliz. 2. c. 10.
National Insurance Act, 1954	3 & 4 Eliz. 2. c. 1.
National Insurance Act, 1956	4 & 5 Eliz. 2. c. 47.
Education (Scotland) Act, 1956	4 & 5 Eliz. 2. c. 75.
House of Commons Disqualification Act, 1957...	5 & 6 Eliz. 2. c. 20.
National Insurance Act, 1957	5 & 6 Eliz. 2. c. 26.
National Health Service Contributions Act, 1957	5 & 6 Eliz. 2. c. 34.
National Insurance (No. 2) Act, 1957	6 & 7 Eliz. 2. c. 1.